

		Sustained as to Nos. 1 (best evidence, hearsay, irrelevant (as to photo)); 2 (multiple hearsay); 3-4 (lacks personal knowledge, hearsay). Objections To Agbayani Declaration: Sustained as to Nos. 1-4 (lacks personal knowledge, foundation, speculation, hearsay). Defendants to give notice.
3	Cavalry SPV I, LLC v. James Bowie	The unopposed Motion to be Relieved as Counsel of Record, filed by attorneys Thomas J. Prenovost and Brian D. Cronin as to the representation of James Bowie is GRANTED. The Order will become effective upon filing of a proof of service reflecting service of the resulting Order on the client. Moving counsel is ordered to give notice of this ruling.
4	Centennial Realty Brokerage & Investment Group v. Wolfe	Plaintiff Centennial Realty Brokerage & Investment Corporation has demurred to the first amended answer of defendants Jeffrey Wolfe and Emily Wolfe, as trustees of the Jeffrey & Emily Wolfe Trust. Whereas the initial answer filed on May 18, 2023 contained a general denial and 41 affirmative defenses, the first amended answer, which was filed on May 31, 2023, contains a general denial and ten affirmative defenses. Nevertheless, plaintiff has demurred to all ten affirmative defenses. Code Civ. Proc. § 430.30 lists three grounds for demurrer to answer: (1) the answer does not state facts sufficient to constitute a defense; (2) the answer is "uncertain," which includes ambiguous, and unintelligible; and (3) when the answer pleads a contract, it cannot be ascertained whether the alleged contract is written or oral. Each ground must be in a separate paragraph and state whether it is directed to the entire answer or to specified defenses. CRC 3.1320(a). The demurrer (ROA 25) is convoluted but indicates that plaintiff is challenging the first, second, third, fourth, fifth, sixth, eighth, ninth, and tenth affirmative defenses as uncertain for various reasons, including that they do not refer to the specific causes of action to which they relate, that they are duplicative and redundant of other affirmative defenses, and that they are not properly brought against claims sounding in contract. It also indicates that plaintiff challenges the fourth, sixth, and seventh affirmative defenses as not stating sufficient facts to constitute a defense. A demurrer to an answer on the ground of uncertainty must specify in what way the answer is uncertain. See <u>Coons v. Thompson</u> (1946) 75 Cal.App.2d 687, 690. As previously mentioned, plaintiff contends that some of the affirmative defenses, particularly the first, second, third, fourth, fifth, eighth, and tenth affirmative defense are uncertain because they do not refer to the specific causes of action to which they are directed as required by Code Civ. Proc. § 431.30(g). This subdivision provides that defenses in an answer "shall be separately stated, and the several defenses shall